

SEAT BELTS, CHILD SAFETY SEATS AND AIR BAGS

Seat belts save lives and can prevent serious injuries in traffic crashes. This is why New York State requires seat belt use by adults in motor vehicles and seat belts, booster seats or child safety seats for children.

New York is a “primary enforcement” state, which means a police officer can pull you over just because you or one of your passengers isn’t wearing their seatbelt. A law enforcement officer can issue a traffic ticket for failure to wear a seat belt. This law also applies to visitors from outside New York State.

Highlights of the New York State occupant restraint law:

- The driver must be properly restrained by a seat belt. The driver can face a fine of up to \$50 if they fail to buckle up.
- A passenger age sixteen (16) years of age or older must be properly restrained by a seat belt, one person per belt. A passenger age sixteen (16) years of age or older can face a fine of up to \$50 if they fail to buckle up.
- The driver must make sure that each passenger under the age of sixteen (16) is properly restrained by a seat belt or appropriate child restraint system. The driver can face a fine of \$25 to \$100 and receive three points on their driver license for each violation.
- A child under the age of four (4) must be restrained in a federally approved child safety seat (examples include infant only, convertible, combination, all-in-one car seat) that is attached to a vehicle by a safety belt or universal anchorage (LATCH) system. A child must be restrained in the rear-facing position until they are two (2) years old or reach the highest weight or height limit allowed by the car seat manufacturer. For babies that outgrow their infant-only car seat, it is recommended that a convertible or all-in-one seat be used in the rear facing position until they outgrow the highest weight or height limit allowed by the manufacturer for the rear facing position.
- A child between the age of four (4) and seven (7) must be restrained in an appropriate federally approved child restraint system (commonly referred to as a booster seat) used with lap and shoulder belt. An appropriate child safety restraint system means the child meets the size and weight recommendations of the manufacturer. A vehicle’s seat belts are not defined as appropriate child restraint systems under the law as they are not designed for use by children.
- All other passengers between the ages of eight (8) and fifteen (15) must be properly restrained by a seat belt, one person per belt. If a child is eight (8) years old or older and is under 4’9” tall or weighs less than 100 pounds, continued use of an appropriate child restraint system is recommended. If the child is four (4) years of age or older, but under the age of eight (8) and is over 4’9” tall and/or weighs more than 100 pounds, the child may be restrained by a seat belt. If the seat belt does not fit correctly, it is recommended that the child continue to use an appropriate child restraint system.
- **Exemptions:** Seat belt use is not required in certain emergency vehicles, 1964 or older vehicles, by passengers in buses (except school buses; but seat belt use in a school bus can be required by a school district), rural letter carriers while discharging the duties of such employment, passengers in taxi and livery vehicles under the age of eight (8), and passengers or operators with a physically disabling condition that prevents them from being restrained, provided that such condition is duly certified by a physician.

When you drive, you must make sure each person in your vehicle is properly restrained by a seat belt, child restraint system, or car seat. During a crash, a person not properly restrained becomes a flying object and a danger to each person in the vehicle.